

****04.02.2025****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed an investigation in December 2024 at V&M; Contab&Management; SRL and found a violation of the provisions of Article 58 paragraph (1) letters a) and e) and Article 32 paragraph (4) in conjunction with Article 32 paragraph (1) letter b) and paragraph (2) of Regulation (EU) 2016/679. As such, the operator was sanctioned administratively:

1. with a fine of 9,954.00 lei (equivalent to the amount of 2,000 EURO), for violating the provisions of Article 58 paragraph (1) letters a) and e) of Regulation (EU) 2016/679 in conjunction with Article 83 paragraph (5) letter e) of Regulation (EU) 2016/679;
2. with a fine of 39,816.00 lei (equivalent to the amount of 8,000 EURO), for violating the provisions of Article 32 paragraph (4) in conjunction with Article 32 paragraph (1) letter b) and paragraph (2) of Regulation (EU) 2016/679.

The investigation was initiated following a complaint regarding a possible violation of the provisions of Regulation (EU) 2016/679. During the investigation, it was found that the operator did not respond to the information requests of the National Supervisory Authority, although it was obliged to allow our institution access to personal data and all necessary information in order to fulfill its legal duties, thus violating the provisions of Article 58 paragraph (1) letters a) and e) of Regulation (EU) 2016/679.

Additionally, during the investigation, it was found that the operator transmitted via Whatsapp to a third party a table containing access passwords for the Revisal platform for several legal entities, through which personal data of employees or former employees of these companies could be accessed. This incident led to unauthorized access and unauthorized disclosure of personal data (such as name, surname, citizenship, personal identification number, residence) processed. Therefore, the operator did not take measures to ensure that any natural person acting under its authority and having access to personal data only processes them at the request of the operator. At the same time, the operator did not implement appropriate technical and organizational measures to ensure a level of security corresponding to the risk of processing, including the ability to ensure the confidentiality and integrity of processing systems and services. Thus, the provisions of Article 32 paragraph (1) letter b) and paragraphs (2) and (4) of Regulation (EU) 2016/679 were violated.

At the same time, a corrective measure was imposed on the operator to change all access credentials for the Revisal platform available on the website <https://reges.inspectiamuncii.ro/> for all legal entities affected by the incident.

****Legal and Communication Directorate****

****N.A.S.P.D.C.P.****